

(1977) 71 Cal. App. 873, 878-79 (declining defendant's request for judicial notice of facts in arrest report).

Accordingly **the demurrer is overruled in its entirety**. Defendant must file a responsive pleading within 15 days of service of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C25-01045  
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,  
\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL  
FILED BY: JENKINS, MICHAEL MAURICE  
\*TENTATIVE RULING:\*

The unopposed motion of David A. Melton and Heather Kelly-Cavanaugh to be relieved as counsel for Defendant Michael Jenkins is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Michael Jenkins' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Michael Jenkins' Counsel** to be Relieved as Counsel of Record. This motion is **granted**.

Counsel is ordered to re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon David A. Melton and Heather Kelly-Cavanaugh filing proof of service of signed order on Defendant Michael Jenkins and all parties.